



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:

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By:

MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 127TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JUNE 17, 2025

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Carmelito E. Valeroso		SB Member
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ORDINANCE NO. 08
Series of 2025

“AN ORDINANCE PRESCRIBING THE ISSUANCE OF COLLECTION OF TAX CLEARANCE/CERTIFICATION/SKETCH PLAN IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR AND PROVIDING FOR THE REQUIREMENTS OF FEES THEREOF”

Author: Hon. Michael C. Escuyos

Enacted by: All Member present

EXPLANATORY NOTE

The Local Government Code of 1991 (Republic Act No. 7160) empowers Local Government Units to generate revenue and collect fees necessary for their operations, including those related to taxation and land use. The issuance of tax clearances, certifications, and sketch plans plays a vital role in ensuring that individuals and businesses comply with local tax ordinances and land-use regulations.

Recognizing the need for a standardized and efficient process in the issuance and collection of tax clearances, certifications, and sketch plans, this ordinance seeks to establish clear guidelines and prescribe reasonable fees for such services. The implementation of this ordinance will not only promote transparency and efficiency in municipal transactions but will also enhance revenue generation to support public services and development projects.

By enacting this ordinance, the Municipality of Carmen, Surigao del Sur, aims to foster a streamlined process that benefits both the Local Government and its constituents. The proper issuance of these documents ensures that all transactions involving taxes and land-use matters are legally compliant, thereby contributing to the orderly development of the municipality.

Thus, the passage of this ordinance is deemed necessary for the benefit of the municipality and its constituents.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in session assembled that:

Section 1. Short Title. This Ordinance shall be known as **"Prescribing the Revenue Raising Powers of the Municipality of Carmen, Surigao del Sur 2025"**.

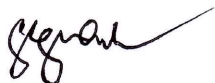
Section 2. Coverage. This Ordinance shall cover the Offices of the Municipal Treasurer, Municipal Assessor and, the Municipal Planning and Development Coordinator of the Local Government Unit of Carmen, Surigao del Sur responsible for the issuance on the above subject Local Revenue raising power.

Section 3. Purpose. This Ordinance aims to:

1. Establish a clear and efficient procedure for the issuance of tax clearance, certification, and sketch plan.
2. Define the necessary requirements for obtaining these documents
3. Prescribe reasonable fees for processing and issuance
4. Ensure compliance with Local Tax Ordinances and land-use policies

Section 4. Definition of Terms. For purpose of this Ordinance, the following terms shall be defined as follows:

1. **MTO** – refers to the Municipal Treasurer's Office of Carmen, Surigao del Sur responsible for the collection, safekeeping, and disbursement of the municipal funds, including the issuance of clearances.
2. **MASSO** – refers to the Municipal Assessor's Office of Carmen, Surigao del Sur responsible for the issuance of Tax Declaration Certification.
3. **MPDO** – refers to the Municipal Planning and Development Office of Carmen, Surigao del Sur responsible for the issuance of sketch plan.
4. **Clearance** – A certification issued by the Municipal Treasurer's Office indicating that an individual or entity has settled all due taxes and fees.
5. **Certificate** – A document issued by the concerned Municipal Office attesting to certain facts upon request.
6. **Sketch Plan** – A simple graphical representation of a lot or property issued by the Municipal Engineering or Assessor's Office for reference purposes.
7. **Applicant** – refers to the registered owner or person holding Special Power, business entity, or organization seeking to obtain an MTO clearance.





Section 5. Issuance of Tax Clearance, Certification, and Sketch Plan. The Municipal Treasurer, Assessor, and Engineer shall be responsible for issuing tax clearances, certifications, and sketch plans upon compliance with the required documents and payment of prescribed fees.

Section 6. Requirements. Applicants requesting any of the above documents must submit the following:

1. For Tax Clearance:

- Duly accomplished application form
- Proof of Tax Payment (Official Receipt)
- Valid Government issued ID

2. For Certification:

- Duly accomplished request form
- Supporting documents, if applicable
- Payment of required fees
- Deed of Sale/SPA

3. For Sketch Plan:

- Copy of land title, tax declaration, or other ownership documents
- Requests letter addressed to the Municipal Engineer
- Payment of required fees

Section 7. Fees. There shall be fees collected for the issuance of Municipal Treasurer Office (MTO) for every Certificate issued/Tax Clearance for the following purposes per lot/property:

1. Certified True Copy of Tax Declaration per document	-	Php250.00
2. Certification of total Land Holding	-	Php250.00
3. Certification of Improvement/Non-Improvement	-	Php250.00
4. Sketch Plan	-	Php250.00
5. For bank loan application	-	Php250.00
6. For land transfer/Register of Deeds/Provincial Assessor	-	Php250.00
7. For building permit	-	Php250.00
8. For electrical installation/SURSECO application	-	Php250.00
9. For Zoning Clearance	-	Php250.00
10. For other legal purposes not cited above	-	Php250.00

Section 8. Documentary Stamp – Pursuant to Revenue Regulations No. 2-2023 dated February 9, 2023 of the Bureau of Internal Revenue there shall be an additional collection of Documentary Stamp Tax for every Tax Clearance or Certification in the amount of Thirty Pesos (Php30.00) Only per document.

Section 9. Exemptions. The following may be exempted from paying the fees provided in Section 7 of this ordinance:

1. Government and Religious Entities or Agencies transacting with the Municipal Treasurer.
2. Person or entities with unpaid tax obligation but who are under a valid payment plan approved by the MTO.
3. All exemptions shall be subject to the discretion and approval of the Municipal Treasurer.





Section 10. Transitory Provisions. All person or entities who have an ongoing business transactions or agreements with the municipality shall have ten (10) days from the enactment of this ordinance to comply with the clearance requirement.

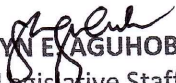
Section 11. Repealing Clause. Any provisions of existing Ordinances, Executive Orders, or policies inconsistent with this ordinance are hereby repealed or amended accordingly.

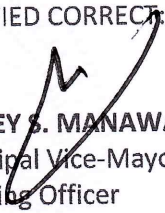
Section 12. Separability Clause. If any section of this ordinance is declared unconstitutional or invalid, the other sections not affected thereby shall remain in full force and effect.

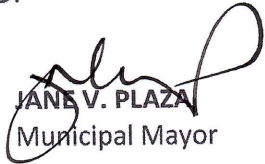
Section 13. Effectivity Clause. This Ordinance shall take effect upon approval and posting into two (2) conspicuous places within the municipality.

ENACTED this 17th day of June, 2025, at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing ordinance.


JOCELYN E. AGUHOB
Local Legislative Staff Assistant II/
Acting Secretary

CERTIFIED CORRECT:

HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:

JANE V. PLAZA
Municipal Mayor